

24STCV12815 24STCV12815

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Case Number: 24STCV12815 Hearing Date: August 21, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 21, 2026

Case Name: Sanders v. Spiritual Pink, et
al.

Case

No.: 24STCV12815

Matter: Demurrer

Moving

Party: Defendant Santee Maple

Alley Association

Responding Party: Plaintiff Johan Sanders

Tentative Ruling: Santee Maple Alley Association's demurrer
is overruled.

Plaintiff

Johan Sanders ("Sanders") filed this action against Defendants Spiritual Pink, an unknown entity, Downtown Los Angeles Property Owners Association, a California corporation, Maple Avenue L.P., a California Limited Partnership, Sean Doe ("Doe"), an individual, and Does 1 to 100. On November 12, 2025, Plaintiff

filed a First Amended Complaint ("FAC") for the causes of action: (1) assault; (2) battery; (3) intentional infliction of emotional distress; (4) negligence; and (5) negligent hiring, supervision, and retention. Plaintiff named Santee Maple Alley Association, a California nonprofit ("Santee Maple"), and Green Knight Security, Inc., a California stock corporation. Plaintiff alleges that on June 8, 2022, Plaintiff was on the premises located at 1121 Maple Avenue, Los Angeles, CA, 90015 ("Subject Premises"), when Doe and other unidentified employees physically attacked and assaulted Plaintiff. The FAC alleges that on August 9, 2022, Plaintiff returned to the Subject Premises and the events of June 8, 2022, occurred again.

On February

19, 2026, the Court sustained Santee Maple's demurrer to Plaintiff's FAC with leave to amend.

On May 18,

2026, the Court sustained Santee Maple's demurrer to Plaintiff's Second Amended Complaint with leave to amend.

On June 16,

2026, Plaintiff filed a Third Amended Complaint ("TAC") realleging the same causes of action.

Santee

Maple demurs to Plaintiff's fourth cause of action for negligence and fifth cause of action for negligent hiring, supervision, and retention for a second time. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer

as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

Judicial Notice

Santee

Maple requests the Court to take judicial notice of two legal documents and one fact. The Court takes judicial notice of recorded documents, Exhibits B and C, pursuant to Evidence Code section 452, subdivision (h).

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).)

Santee

Maple declares that the parties met and conferred on June 17, 2026, over the telephone. Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Santee

Maple demurs to Plaintiff’s fourth cause of action for negligence and fifth cause of action for negligent hiring, supervision, and retention on the grounds of uncertainty, and for failure to state sufficient facts to constitute a cause of action.

Uncertainty

for the Fourth and Fifth Causes of Action

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

Santee Maple's

notice of demurrer states that Plaintiff's TAC is uncertain. However, Santee Maple provides no supporting argument. Additionally, looking at the TAC as a whole, it is not incomprehensible. The TAC alleges sufficient facts for Santee Maple to respond.

Thus, the

Court overrules Santee Maple's demurrer on the fourth and fifth causes of action on the basis of uncertainty.

Failure

to State a Cause of Action

Fourth

Cause of Action—Negligence

“To

establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’ ” (Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213 (Brown).) “A duty exists only if “the plaintiff's interests are entitled to legal protection against the defendant's conduct.”” (Ibid.) Moreover, a “special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that “entails an ability to control [the third party's] conduct.” [Citation.] Relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests, are all examples of special relationships that give rise to an affirmative duty to protect. [Citation.] The existence of such a special relationship puts the defendant in a unique

position to protect the plaintiff from injury. The law requires the defendant to use this position accordingly. [Citation.]” (Id. at p. 215-16.)

“Courts have found such a special relationship in cases involving the relationship between business proprietors such as shopping centers, restaurants, and bars, and their tenants, patrons, or invitees.” (Melton v. Boustred (2010) 183 Cal.App.4th 521, 535 (Melton).)

Santee

Maple argues that it did not owe Plaintiff a duty because it is not the owner of the premises. However, ownership is not the only way to have a duty of care in premises liability. Santee Maple cites to Melton, where the court recognized that special relationships can exist between “business proprietors such as shopping centers, restaurants, and bars, and their tenants, patrons, or invitees.” (Melton, supra, 183 Cal.App.4th at p. 535.) Similarly, a defendant’s “lack of ownership or right to maintain the property was important but not conclusive. Where a business expressly or impliedly adopts the property of another and invites others to use it, that business ‘owes to such invitee a duty to exercise reasonable care to see that the property is safe.’” (Hassaine v. Club Demonstration Services, Inc. (2022) 77 Cal.App.5th 843, 855.)

Plaintiff

argues that Santee Maple did owe him a duty because it exercised control over the Subject Premises and the under the negligent-undertaking doctrine.

Section

324A of the Restatement (Second) of Torts which states: “One who undertakes, gratuitously or for consideration, to render services to another which he should recognize as necessary for the protection of a third person or his things, is subject to liability to the third person for physical harm resulting from his failure to exercise reasonable care to [perform]⁴ his undertaking, if [¶] (a) his failure to exercise reasonable care increases the risk of such harm, or [¶] (b) he has undertaken to perform a duty owed by the other to the third person, or [¶] (c) the harm is suffered because of reliance of the other or the third person upon the undertaking.” (Artiglio v. Corning Inc. (1998) 18 Cal.4th 604, 612–613.)

Plaintiff

cites to Mukthar and Marois to support his case, but the Court finds these cases inapplicable. In both of the cases the issue of duty was addressed as to the security entity with customers not the business. (Marois

v. Royal Investigation & Patrol, Inc. (1984) 162 Cal.App.3d 193, 200; Mukthar v. Latin American Security Service (2006) 139 Cal.App.4th 284, 290.) Here, unlike in Mukthar and Marois, the claims against Santee Maple concern the business, not the security.

Plaintiff

also argues that Santee Maple, as an operator of the marketplace, owed Plaintiff a duty to him as an invitee because the harm was foreseeable. The Court agrees with Plaintiff that he has made sufficient allegations.

“[O]nly

when “heightened” foreseeability of third party criminal activity on the premises exists—shown by prior similar incidents or other indications of a reasonably foreseeable risk of violent criminal assaults in that location —does the scope of a business proprietor’s special-relationship-based duty include an obligation to provide guards to protect the safety of patrons. (Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 240.) Plaintiff alleges that Santee Maple operates and oversaw the marketplace, invited the public on the Subject Premises, and undertook to provide security for the safety of patrons. (TAC, ¶¶ 10-15, 43-45.) Plaintiff also alleges foreseeability because he alleges two identical events that occurred on June 8, 2022, and August 9, 2022, with the same personnel. (TAC, ¶¶ 47, 49.) Thus, at this stage of the proceedings Plaintiff has alleged that Santee Maple has alleged sufficient facts.

Therefore,

the Court overrules Santee Maple’s demurrer to Plaintiff’s cause of action for negligence.

Fifth Cause of Action—Negligent

Hiring, Supervision, and Retention

“Liability

for negligent hiring and supervision is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger to customers or other employees, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees.” (Mendoza v. City of Los Angeles (1998) 66 Cal.App.4th 1333, 1339.) “[L]iability for negligence can be imposed only when the employer knows, or should know, that the employee, because of past behavior or other factors, is unfit for the specific tasks to

be performed.” (Federico v. Superior Court (Jenry G.) (1997) 59 Cal.App.4th 1207, 1215.) “An employer is not charged with guaranteeing the safety of anyone his employee might incidentally meet while on the job against injuries inflicted independent of the performance of work-related functions.” (Ibid.)

Plaintiff

has alleged that Santee Maple contracted Green Knight Security, Inc. to provide security and Sean Doe and the unidentified assailants were acting as security on the dates of the incidents. (TAC, ¶¶ 11-12, 16, 19, 23, 44.) Plaintiff also alleges that Defendants knew or reasonably should have known of the unreasonable risk to patrons because Defendants “received complaints, observed incidents, possessed supervisory authority over security operations, and had opportunities to monitor, investigate, evaluate, and discipline security personnel interacting with members of the public.” (TAC, ¶¶ 47, 53.) Thus, at this stage of the proceedings Plaintiff has alleged sufficient facts to survive demurrer.

The Court overrules

Santee Maple’s demurrer as to Plaintiff’s fifth cause of action.

Conclusion

The Court overrules Maple Alley Association’s demurrer.